

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Wednesday, August 05, 2026
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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21CV-01626	LVNV Funding LLC vs. Eligio Lazo
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Order to Show Cause Re: Dismissal - Notice of Settlement

On November 4, 2021, Plaintiff filed a notice of conditional settlement indicating that a request for dismissal would be filed no later than July 18, 2026. No request for dismissal has been filed. If no party appears to request more time to complete the settlement, the Court will dismiss the action pursuant to rule 3.1385(c)(2) of the California Rule of Court.

24CV-05051	Citibank, N.A. vs. Martha A Rivera
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Status Review of Settlement

Appearance by Plaintiff's counsel is required. If Plaintiff files a notice of settlement or request for dismissal prior to the hearing, the hearing will be vacated. On July 7, 2026, counsel for Defendant filed a case management statement indicating that the case has resolved.

25CV-00156

Cavalry SPV I, LLC vs. Laura Vargas

Court Trial

Appearance required. The Court notes that Plaintiff recently filed a motion for an order deeming admitted requests for admission that is scheduled for hearing on August 24, 2026, at 1:30 p.m. in Courtroom 9.

25CV-06771

Wells Fargo Bank, N.A. vs. Rita Stinson

Motion for Summary Judgment

The unopposed motion for summary judgment by plaintiff Wells Fargo Bank, N.A. is GRANTED. Upon consideration of all the evidence set forth in the papers, including Defendant's responses to requests for admission and the declaration of plaintiff's Loan Workout Specialist William H. Haas authenticating business records supporting Plaintiff's undisputed material facts, the Court finds that there is no triable issue of material fact and Plaintiff is entitled to judgment as a matter of law. Plaintiff has proven each element of its cause of action for breach of contract. The burden therefore shifts to Defendant to show the existence of one or more triable issues of material fact. (Code Civ. Proc., § 437c, subd. (p)(1).) By not opposing the motion, Defendant has failed to meet her burden.

Judgment shall be entered for Plaintiff and against Defendant Rita Stinson. The Court will sign the proposed order and proposed judgment lodged with the moving papers.

The case management conference scheduled for November 13, 2026, is vacated. The order to show cause why sanctions should not be imposed on Plaintiff's counsel for failure to attend the June 12, 2026, case management conference is discharged and the hearing on November 13, 2026, is vacated.
